

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 2775 of 2022

with

Civil Revision No. 2776 of 2022

In the matter of:

Farid Ali Khan

...Petitioner.

-Vs-

Monsurul Karim and others.

....Opposite parties.

Mr. Md. Mamunor Rashid, Adv.

...For the petitioners.

Mr. A.S.M. Abdur Razzak, Adv.

...For the opposite party No. 3.

Present

Mr. Justice Mamnoon Rahman

Heard on: **18.05.2023 & 01.06.2023**

And

Judgment on: **The 20th November, 2023**

Both the rules were heard together and now disposed of by a common judgment as they do involve in similar questions of facts and law as well as the parties are same.

In Civil Revision No. 2775 of 2022 rule was issued calling upon the opposite parties to show cause as to why the order dated 07.02.2022 passed by the learned Senior Assistant Judge, 1st Court, Dhaka summarily rejected the Title Suit No. 221 of 2021 filed for recovery of possession under the Specific Relief Act, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

In Civil Revision No. 2776 of 2022 rule was issued calling upon the opposite parties to show cause as to why the order dated 07.02.2022

passed by the learned Senior Assistant Judge, 1st Court, Dhaka summarily rejected the Title Suit No. 231 of 2021 filed for recovery of possession under the Specific Relief Act, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of both the rules, are that, the present petitioner as plaintiff instituted Title Suit No. 221 of 2021 as well as Title Suit No. 231 of 2021 impleading the opposite party as defendants under Section 9 of the Specific Relief Act for recovery of khash possession alleging *inter-alia* that the plaintiff is the tenant under the defendants and enjoying the property for long time by paying rent. The simple case of the plaintiff is that the opposite party-defendants without giving any notice or following any provision of law relevant to the Premises Rent Control Act by forcefully and illegal means evicted the plaintiff and hence the plaintiff filed the suit for recovery of possession. The trial court however fixed 07.02.2022 for maintainability hearing and on the same date the trial court dismissed the suit in *limine*. Being aggrieved, the petitioner moved before this court by way of revisions and obtained the present rules.

The opposite parties contested both the rules by filing counter-affidavit. The case as stated by the opposite party defendants, are that, the petitioner of both the revisions admittedly was their tenant but they being defaulter since 31.07.2016. The further case is that the present petitioner preferred writ petition before this court being Writ Petition

No. 1400 of 2016 challenging certain rent and other aspects. But the High Court Division vide the judgment and order dated 12.03.2020 discharged the rule as much as the case filed by the present petitioner in the Rent Control Act was also dismissed. Also the present petitioner filed a compensation suit which is pending before the concerned trial court.

I have heard the learned Advocates for the petitioner as well as the opposite parties. I have perused the impugned judgments and orders passed by both the courts below, revisional applications, grounds taken thereon, counter-affidavit filed by the opposite parties as well as papers and documents annexed herewith.

On meticulous perusal of the impugned judgment and order, it transpires that the trial court fixed the date for maintainability hearing of both the suits and ultimately dismissed the same in *limine*. It transpires that the present plaintiff filed respective suits in the court of the Assistant Judge, 1st Court, Dhaka impleading the opposite party as defendants for recovery of khash possession by paying due court fee as well as other documents. As per the Civil Procedure Code and other relevant law when a suit is being filed with sufficient court fee and other materials the court of law is to proceed in accordance with law namely, to issue a summons and after return of the same fixed date for framing of issue and thereafter to proceed with the suit by taking evidence by both the parties, if any. There is no provision available in the Code of Civil Procedure, 1908 that the trial court can dismiss a suit

in the name of maintainability hearing and as such, I am of the view that the court below committed an error in passing the impugned judgment and order wherein the court below dismissed the suit in *limine*.

Accordingly, both the rules are made absolute and the impugned judgment and order passed by the courts below is hereby set aside. The trial court is directed to proceed with the suits namely Title Suit Nos. 221 of 2021 and 231 of 2021 strictly on merit in accordance with law and dispose of the same within 6(six) months from the date of receipt of the instant judgment and order without fail.

Communicate the judgment and order to the concerned court below at once.

(Mamnoon Rahman,J:)

Emdad.B.O.